



Court Document on Triple Talaq

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IN THE SUPREME COURT OF INDIA

CIVIL ORIGINAL JURISDICTION

WRIT PETITION (CIVIL) NO. 118 OF 2016

IN THE MATTER OF:

SHAYARA BANOPetitioner
(Represented by Advocate)

VERSUS

UNION OF INDIA & ORS.Respondents

CORAM:

Hon'ble Chief Justice J.S. Khehar
Hon'ble Justice Kurian Joseph
Hon'ble Justice R.F. Nariman
Hon'ble Justice U.U. Lalit
Hon'ble Justice Abdul Nazeer

Date of Filing: February 17, 2016

Date of Judgment: August 22, 2017

FACTUAL BACKGROUND

1. Petitioner's Profile:

The petitioner, Shayara Bano, hails from Kashipur, Uttarakhand. She was married to Respondent Rizwan Ahmad in accordance with Muslim personal law.^[1]

2. Marital Discord:

The petitioner alleged continuous harassment and cruelty from her husband and in-laws, including demands for dowry amounting to Rs. 5,00,000/- (Rupees Five Lakh Only). On April 9,

2015, the respondent-husband allegedly attempted to harm the petitioner by administering medicines that could cause loss of mental balance.^[1]

3. The Triple Talaq Incident:

On October 10, 2015, the respondent-husband pronounced "talaq, talaq, talaq" (triple talaq) in the presence of two witnesses: Mohammed Yaseen (son of Abdul Majeed) and Ayaaz Ahmad (son of Ityaz Hussain), thereby divorcing the petitioner instantly and unilaterally. The divorce was pronounced with the words: "I gave 'talak, talak, talak', hence like this I divorce from you from my wife. From this date there is no relation of husband and wife. From today I am 'haraam', and I have become 'naamharam'. In future you are free for using your life".^[1]

LEGAL ISSUES RAISED

1. Constitutional Validity:

The petitioner challenged the constitutional validity of 'talaq-e-biddat' (instant triple talaq) under Section 2 of the Muslim Personal Law (Shariat) Application Act, 1937. The practice was argued to be violative of fundamental rights guaranteed under Articles 14, 15, and 21 of the Constitution of India.^{[2] [3] [4] [1]}

2. Religious vs. Fundamental Rights:

The petition questioned whether the practice of triple talaq, though claimed to be part of Muslim personal law, could override fundamental constitutional rights, particularly:

- **Article 14:** Right to Equality - the practice denies Muslim women equality before the law^{[3] [4]}
- **Article 15(1):** Non-discrimination on grounds of sex^{[4] [3]}
- **Article 21:** Right to Life and Personal Liberty^[4]

3. Validity under Shariat:

The petitioner contended that 'talaq-e-biddat' is not an integral part of Islamic law (Shariat) and is not protected under Article 25 (Freedom of Religion) of the Constitution.^[1]

LEGAL FRAMEWORK

1. Muslim Personal Law (Shariat) Application Act, 1937:

Section 2 of this Act recognized triple talaq as a statutory right, bringing it under the ambit of Article 13 of the Constitution. However, Article 13 mandates that all laws shall not be violative of fundamental rights.^[3]

2. Types of Divorce under Islamic Law:

There are three types of divorce recognized under Islamic law :^[3]

- **Ahsan:** The most proper form, revocable
- **Hasan:** A proper form, revocable
- **Talaq-e-Biddat (Triple Talaq):** Instant and irrevocable, mainly prevalent among communities following the Hanafi School of Islamic Law^[3]

3. Gender Disparity:

Under triple talaq, husbands could divorce wives by merely repeating 'talaq' three times, while wives had no such right and were required to approach courts under the Muslim Personal Law (Shariat) Application Act, 1937 for divorce.^[3]

SUPREME COURT JUDGMENT - AUGUST 22, 2017

OPERATIVE FINDINGS:

1. Constitutional Invalidity:

The Supreme Court, by a majority decision, declared the practice of instant triple talaq (talaq-e-biddat) as **unconstitutional and void**. The Court held that a divorce pronounced by uttering 'talaq' three times in one sitting is illegal and has no legal effect.^[2]

2. Violation of Fundamental Rights:

The Court determined that triple talaq violated Articles 14, 15, and 21 of the Constitution, as it:

- Discriminated against Muslim women on the grounds of sex^[3]
- Denied equality before law^[4]
- Arbitrarily deprived women of their right to life with dignity^[4]

3. Not Protected by Article 25:

The Court ruled that Article 25 (Freedom of Religion) does not protect religious practices that negatively affect the welfare of citizens and is subject to restrictions under Articles 14 and 15.^[3]

4. Precedent Cases:

The Court referenced similar cases including Smt. Sumaila vs. Aaqil Jamil and Ors. (Allahabad High Court) and Jiauddin Ahmed v. Anwara Begum, where triple talaq was held as wrongful and violative of constitutional provisions.^[4]

LEGISLATIVE ACTION - THE MUSLIM WOMEN (PROTECTION OF RIGHTS ON MARRIAGE) ACT, 2019

1. Parliamentary Process:

Following the Supreme Court judgment, the Government introduced a bill to Parliament on August 22, 2017. After extensive debate and opposition from various political parties, the bill was:^[2]

- Passed by the Lok Sabha on December 28, 2017^[2]
- Approved by the Rajya Sabha on July 30, 2019 (by a vote of 99-84)^[2]
- Received Presidential assent and became law on **August 1, 2019**^{[5] [2]}

2. Key Provisions of the Act:

A. Declaration of Illegality:

Instant triple talaq (talaq-e-biddat) in any form – spoken, written, or by electronic means such as email, SMS, or WhatsApp – is declared **illegal and void**.^{[2] [3]}

B. Criminal Penalties:

Any Muslim husband who pronounces triple talaq is liable to:

- **Imprisonment:** Up to 3 years^[5] ^[2] ^[3]
- **Fine:** As determined by the court^[5]

C. Cognizable Offense:

Triple talaq is a cognizable offense, allowing police officers to arrest without a warrant. However, complaints can only be filed by:

- The aggrieved woman herself, or
- Any relation by blood or marriage^[3]

D. Bail Provisions:

The accused is entitled to bail, which can be granted by a magistrate only after hearing the aggrieved woman.^[3]

E. Protection of Women's Rights:

- The divorced woman is entitled to seek **custody of minor children**^[3]
- She is entitled to demand **maintenance** for herself and dependent children^[2] ^[3]
- The amount of subsistence allowance is determined by the magistrate^[3]

F. Reconciliation Provision:

The law provides scope for reconciliation between parties without undergoing nikah halala, if both sides agree to stop legal proceedings and settle the dispute.^[3]

IMPACT AND SIGNIFICANCE

1. Gender Justice:

The judgment and subsequent legislation represented a watershed moment in women empowerment in India, giving progressive constitutional thoughts precedence over discriminatory personal law practices.^[3]

2. Legal Uniformity:

The law established that no religious practice can override fundamental constitutional rights, setting an important precedent for gender equality.^[2] ^[3]

3. Protection Mechanism:

Women who previously had no recourse against arbitrary and instant divorce now have legal protection and can seek maintenance, custody rights, and criminal action against their husbands.^[5] ^[2]

4. Reception:

The bill was welcomed by triple talaq petitioners including Ishrat Jahan and supported by advocates like Arif Mohammad Khan.^[2]

CONCLUSION

This landmark judgment and subsequent legislation abolished an archaic practice that had subjected Muslim women to arbitrary and instant divorce without any legal recourse. The Supreme Court's decision in *Shayara Bano v. Union of India* (WP(C) No. 118 of 2016) affirmed that fundamental rights guaranteed by the Constitution of India supersede personal laws that violate principles of equality, non-discrimination, and human dignity.^{[4] [2] [3]}

The Muslim Women (Protection of Rights on Marriage) Act, 2019 not only criminalized triple talaq but also provided comprehensive protection mechanisms for affected women, including maintenance rights and child custody provisions.^{[5] [2] [3]}

LEGAL CITATIONS:

1. *Shayara Bano v. Union of India & Ors.*, Writ Petition (Civil) No. 118 of 2016, Supreme Court of India, decided on August 22, 2017^[1]
2. The Muslim Women (Protection of Rights on Marriage) Act, 2019 (Act No. 20 of 2019), passed July 30, 2019, effective August 1, 2019^{[5] [2]}
3. Muslim Personal Law (Shariat) Application Act, 1937^[3]
4. Constitution of India - Articles 13, 14, 15, 21, and 25^{[4] [3]}
5. *Smt. Sumaila vs. Aaqil Jamil and Ors.*, Allahabad High Court^[4]

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